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TENTATIVE RULING

July 17, 2026

25SMCV00039 (McShane v. Mead, et.
al.)

RELEVANT BACKGROUND

Plaintiff Krystal McShane (Plaintiff) filed this action on January 6, 2025, against defendants Lisa Marie Mead (Defendant) and does 1-50, asserting one cause of action motor vehicle negligence. Plaintiff claims, among other things, damages for a traumatic brain injury (TBI).

INSTANT MOTION

On June 9, 2026, Plaintiff filed the instant motion to compel further responses to Requests for Production, Set Two, Nos. 31-33, 35, and 37. Defendant filed an opposition, and Plaintiff filed a reply.

MEET AND CONFER

The Court finds that Plaintiff has satisfied the meet and confer requirement. (See Bunn Decl. ¶ 11.)

DISCUSSION

Code of Civil Procedure section 2032.610 provides:

(a) If a

party submits to, or produces another for, a physical or mental examination in compliance with a demand under Article 2 (commencing with Section 2032.210), an order of court under Article 3 (commencing with Section 2032.310), or an agreement under Section 2016.030, that party has the option of making a written demand that the party at whose instance the examination was made deliver both of the following to the demanding party:

(1) A copy

of a detailed written report setting out the history, examinations, findings, including the results of all tests made, diagnoses, prognoses, and conclusions of the examiner.

(2) A copy

of reports of all earlier examinations of the same condition of the examinee made by that or any other examiner.

(b) If the

option under subdivision (a) is exercised, a copy of the requested reports shall be delivered within 30 days after service of the demand, or within 15 days of trial, whichever is earlier.

Here, the requests for

production at issue (Nos. 31-33, 35, and 37) seek the raw data from a neuropsychological examination performed on Plaintiff on November 20, 2025 by Dr. J. Vincent Filoteo (Dr. Filoteo) in forming his opinions regarding her traumatic brain injury claims. Specifically, the requests at issue ask for the following:

(1) the raw

data generated, recorded, or relied upon in connection with the neuropsychological examination (RFP 31);

2) all test

protocols, answer sheets, response booklets, scoring sheets, scoring keys, and worksheets for each test administered during the examination, whether paper or electronic from the neuropsychological examination (RFP 32);

(3) all

computer-generated output, including but not limited to digital data files, reaction-time data, validity indices, embedded performance validity test data, and software-generated scoring reports created during or after the neuropsychological examination (RFP 33);

(4) all

audio or video recordings of the neuropsychological examination (RFP 35); and

(5) all

training manuals, administration manuals, or scoring manuals actually used or relied upon by the Dr. Filoteo in administering or scoring the tests during the neuropsychological examination.

In support of her contention that

the raw data should be provided, Plaintiff cites *Randy's Trucking, Inc. v. Sup. Ct. of Kern County* (2023) 91 Cal.App.5th 818.

In *Randy's Trucking*,

the court held that it was not an abuse of discretion for a trial court to mandate an independent mental examination on the condition that raw testing data be afterward disclosed to the plaintiff's counsel, subject to a protective order. (*Randy's Trucking*, *supra*, 91 Cal.App.5th at 837.) The court stated that "[t]here is no statutory authority . . . precluding a trial court from ordering the disclosure of test materials or test data when ordering a mental examination" and that the decision to order such disclosure was within the discretion of the trial court. (*Id.* at p. 834.) Additionally, the court assessed the balance of interests and the evidence at issue. Although the defendant's expert submitted a declaration stating that ordering disclosure of the testing data would violate their ethical standards, the court noted that the ethical rules at issue were not submitted to the court, and that the expert did not explain why a proposed protective order, limiting use of the raw data beyond the litigation, would not ameliorate these concerns. (*Id.* at 838.) The court stated that testing data could be useful to attorneys not trained in using the information, because "disclosure of these materials may help to protect against abuse and disputes over what transpired during the examination." (*Id.* at p. 838.)

In opposition, Defendant

argues that she does not have the subject documents in her possession, custody, or control, and that the motion should have been directed at Dr. Filoteo rather than Defendant. Defendant also argues that the disclosure of the data would put the security of the testing in danger. In addressing Randy's Trucking, Defendant emphasizes that the Court has discretion, not that disclosure of such data and recording is required.

In reply, Plaintiff argues that Defendant cannot use Dr. Filoteo as her retained expert when it benefits her, then disclaim control over the materials he generated and relied upon when Plaintiff seeks discovery given that Defendant retained Dr. Filoteo, scheduled Plaintiff's examination through him, obtained and produced his report, and now relies on his declaration to oppose this motion. The Court agrees with Plaintiff.

In the interest of allowing liberal discovery, the Court deems disclosure of the raw test data of the examination appropriate, subject to a protective order. This is based on the Court of Appeal's finding such disclosure appropriate in Randy's Trucking despite its potential to: (1) compromise the validity of future tests; (2) allow for the misuse and misinterpretation of such tests; (3) conflict with American Psychological Association ethical standards; and (4) allow for the coaching of future clients. (Randy's Trucking, *supra*, 243 Cal.App.4th at p. 837.) The Court does not find that Defendant's expert's testimony raises further concerns not already addressed by the Court of Appeal in Randy's Trucking. Additionally, like Randy Trucking, the Court is not persuaded that a protective order would not sufficiently address the concerns raised by Defendant. Nor is the Court persuaded that the materials are not within Defendant's custody or control.

Accordingly, Plaintiff's motion to compel further is GRANTED, conditioned on entry of a protective order that limits the use and disclosure of the materials to this litigation. The Court notes that the "Official Position Statement of the National Academy of Neuropsychology," submitted by Defendant, provides that solutions to the ethical issue include "protective arrangements or protective orders from the court." The Statement further notes that "Court orders are expected to be obeyed in a timely fashion and failure to do so can place the professional in direct conflict with the law and at risk for serious penalties." The "Official Position of the American Academy of Clinical Neuropsychology on test security" similarly endorses the use of

protective orders and states that "[i]n the absence of a client/patient release, psychologist provide test data only as required by law or court order." Here, provision of the data is required by law and court order.

Additionally, the Court orders that Defendant may not rely on Dr. Filoteo unless the materials are produced.